

the date the notice is provided to the Client.

2.8 Use of Subcontractor. Convera may subcontract or delegate any part of the Services (whether or not to a Convera Group Company) but Convera will remain primarily liable for the provision of the Services.

2.9 Assignment of Interest. The Client understands and agrees that no interest will be paid to the Client by Convera with respect to any funds held on behalf of the Client (i.e. funds awaiting Instruction, funds maintained in the Holding Balance or Prepayment). In consideration for the Client's use of the Services, the Client irrevocably waives absolutely in favour of and transfers and assigns to Convera, as the case may be, any ownership right that the Client may claim to have in any interest that may accrue with respect to any funds held on behalf of the Client. For avoidance of doubt, such assignment extends only to any interest earned on any such funds.

3. Forward Contracts

3.1 Forward Contract. The Client may authorise Convera to enter into a Forward Contract only by delivering an Instruction. Each Forward Contract will be governed by the provisions of this clause 3. For the avoidance of doubt, it is agreed by the Parties that this clause 3 will only govern those Forward Contracts purchased from Convera on or after the date on which the Client signed this Agreement.

3.2 Forward Contract Partial Prepayments.

- a) Within two (2) business days of Client's Instruction to enter into a Forward Contract, unless otherwise agreed (or as contemplated by the Facility), Convera must receive from the Client a Partial Prepayment in the minimum amount of five percent (5%) of the value of the Forward Contract.
- b) During the term of the Forward Contract, (e.g. at any time until the Maturity Date (Delivery Date/Value Date)) Convera may request, on more than one occasion, and the Client agrees to provide to Convera within two (2) business days of each such request, a Partial Prepayment (if not already provided) and/or Additional Partial Prepayment (Margin Call/Risk Exposure Top-Up Payment). Such Prepayment is/are intended to maintain the relative value of the funds to be purchased from or sold to Convera or, to address, in Convera sole discretion, an adverse change in the Client's financial standing and/or credit worthiness.
- c) Any Prepayment delivered by the Client and received by Convera is nonrefundable and will be applied to satisfy the Client's total payment obligation owed to Convera with respect to the relevant Forward Contract on the Maturity Date (Delivery Date/Value Date) or on the date of any final Draw Down.

3.3 Delivery of funds. Once Settlement has been received by Convera, Convera will deliver the funds in accordance with the Instruction or, if no such Instruction is provided, into the Holding Balance. The Client must initiate such payments from the Holding Balance by providing an Instruction. If the Client does not have access to the Holding Balance, the Client must provide to Convera, at least two (2) business days before the Maturity Date (Delivery Date/Value Date), or Draw Down date, the necessary remittance details and Instructions to initiate the payment to the Payee.

3.4 Draw Down. The Client may Draw Down against a Forward Contract during the Delivery Window; provided, however, Convera has received Settlement in immediately available funds corresponding to the amount of the Draw Down. Notwithstanding any Draw Down, the Client is required to provide full Settlement (or any remaining balance) to Convera in immediately available funds in connection with a Forward Contract on or before the end of the Maturity Date. Convera may at its discretion apply to any Draw Down any rate of exchange that it deems reasonably appropriate.

3.5 Rollover. In the event that the Client desires to rollover a Forward Contract, or any portion thereof, before the Maturity Date (Delivery Date/Value Date), the Client may do so; provided, however, certain terms, conditions and costs (if any) are agreed in advance by the Client and Convera.

3.6 Termination of Forward Contract.

- a) If the Client:
 - i. fails to deliver to Convera any Prepayment or, communicates to Convera an intent not to provide to Convera any Prepayment required in relation to a Forward Contract;